

23GDCV02547 23GDCV02547

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-11

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Case Number: 23GDCV02547 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 2

Date: September 11, 2026

Case No: 23GDCV02547 Trial Date: n/a

Case Name: Valdes v. KIA America, Inc., et al.

MOTION FOR ATTORNEYS' FEES

[CCP § 1794 subd. (d)]

Moving Party: Plaintiff, Mirla Valdes

Responding Party: Defendant, Kia America, Inc.

RELIEF REQUESTED:

Order awarding attorneys' fees and costs in the amount of \$106,958.13 comprised of attorneys' fees of \$86,366.50, and a lodestar multiplier enhancement of \$20,591.63.

CAUSES OF ACTION: from Complaint

1) Violation of Song-Beverly Act - Breach of Express Warranty

2) Violation of Song-Beverly Act - Breach of Implied Warranty

3) Violation of Song-Beverly Act – Section 1793.2(b)

SUMMARY OF FACTS:

Mirla Valdes (“Plaintiff”) alleges that on October 20, 2022, Plaintiff purchased a 2023 Kia Sorento for which Kia America, Inc. (“Defendant”) issued express warranties. Plaintiff alleges that the vehicle was delivered with defects and nonconformities to warranties and that other defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff’s entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (CCP, § 1032 subd. (b).) Attorney fees are allowed as costs when authorized by contract, statute or law. (CCP, § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney’s fees, may be recovered by a prevailing buyer under the Song-Beverly Act. Civil Code section 1794 states:

“If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

(Civil Code, § 1794, subd. (d).)

Entitlement to Attorneys’ Fees

The parties here do not dispute that Plaintiff is the prevailing party pursuant to a February 6, 2026 Settlement Agreement which provides for an award of attorneys’ fees, costs, and expenses to be determined by noticed motion. (Jacobson Decl., ¶ 134.) Thus, Plaintiff is the prevailing party in this action and is entitled to a reasonable amount of attorneys’ fees.

Reasonableness of Fees

Plaintiff seeks an award of attorneys’ fees and expenses in the total amount of \$106,958.13 consisting of: (1) \$86,366.50 in attorneys’ fees (including the \$4,000.00 requested to review the opposition, draft the reply, and attend the hearing); and (2) a 1.25 multiplier enhancement on the attorneys’ fees and costs [or \$20,591.63]. The motion seeks approximately 158 hours of time spent by attorneys at Quill & Arrow, LLP at billing rates ranging from \$175.00 to \$950.00 per hour.

Hourly Rate

In determining a reasonable attorneys’ fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) These facts include (1) the novelty and difficulty

of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group, supra, 22 Cal.4th at p. 1095 ["The experienced trial judge is the best judge of the value of professional services rendered in his court."].)

In connection with attorneys' fee awards under the Song-Beverly Act, "The statute "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." ' ' " (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470, quoting Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

In the opposition, Defendant argues that the billing rates charged are unreasonable. Defendant asserts that Plaintiffs' counsels' rates are unreasonable in light of the non-complex nature of the case. (Opp., pp. 6:27-7:28.) Defendant requests that the Court reduce the rates to a range of \$350-\$450 per hour. (Opp., p. 7:27.)

The moving papers submit evidence justifying the billing rates claimed, describing the experience and expertise of each attorney who billed on this matter (Jacobson Decl., ¶¶ 3-70.) The rates requested conform with what this Court would expect to be charged in matters of this nature. The Court has reviewed all evidence submitted and is familiar with the customary billing rates in this county and in cases of this nature. Under the circumstances, the Court finds the billing rates reasonable, and the Court will not reduce the billing rates charged. The Court will however, take into account the high hourly rates charged and counsels' attested levels of expertise when assessing whether the total number of hours expended was reasonable.

Number of Hours

Plaintiff's fee recovery is based on 158 hours of time spent litigating this case through the instant motion for which Plaintiff has submitted billing records. (Jacobson Decl., Ex. 38.) Defendant objects to Plaintiff's requested hours on the grounds that several of the billing entries are unreasonable. (Opp., pp. 8:19-12:5.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.)

First, Defendant objects to 9.0 hours billed for tasks aimed at recovering Plaintiff's own fees and costs, including generating the instant motion for attorneys' fees. Defendant argues that a reduction of 7.0 hours is warranted. While the billing and supporting evidence may have taken some time to gather, this appears to be substantially a template motion regularly used by Plaintiff's counsel. The Court therefore reduces the fee by 4.0 hours.

Accordingly, the Court will reduce the fees by \$1,980.00

In addition, the request for an additional \$4,000 to review the opposition, draft a reply, and appear at the hearing is excessive. At counsel's requested rate of \$495.00 per hour, this represents more than 8.0 hours of attorney time. The Court finds a reasonable time spent to be no more than 1.0 hour to review the opposition, 3.0 hours to prepare the reply, and 1.0 hour to attend the hearing by video appearance. In total, 5.0 hours of attorney time at \$495.00 per hour amounts to

\$2,475.00.

Accordingly, the Court will reduce the fees by an additional \$1,525.00

Second, Defendant objects to 1.4 hours billed to prepare Plaintiff's initial written discovery requests. The Court agrees that the hours claimed are overstated. The Court therefore reduces the fee by 0.6 hours.

Accordingly, the Court will reduce the fees by \$315.00.

Third, Defendant objects to 2.7 hours billed to draft Plaintiff's trial brief on the grounds that the document is nearly identical in every case besides Plaintiff's name, the vehicle information, and the description of the case. The Court agrees that the hours claimed are excessive. Updating the trial brief with the relevant information should take minimal time, especially for counsel with the level of experience and high hourly rate claimed here. The Court therefore reduces the requested time by 1.0 hours.

Accordingly, the Court will reduce the fees by \$425.00.

Fourth, Defendant objects to 3.6 hours billed for reviewing Defendant's discovery responses and documents produced on grounds that the documents are the same or similar to documents produced to Plaintiff's counsel in other cases. The Court agrees that the hours claimed are overstated. The Court therefore reduces the requested time by 1.5 hours.

Accordingly, the Court will reduce the fees by \$525.00.

Fifth, Defendant objects to 0.9 hours to review Defendant's propounded first set of discovery. Upon review of the time entries, the Court does find the time spent on this task to be unreasonable. Accordingly, the Court declines to reduce the fees on this ground.

Sixth, Defendant objects to 4.0 hours billed to draft Plaintiff's discovery responses on the grounds that the same discovery is propounded in nearly every lemon law matter. The Court agrees that the hours claimed are excessive. Responding to standard lemon law discovery should take minimal time, especially for counsel with the level of experience and high hourly rate claimed here. The Court therefore reduces the requested time by 2.0 hours.

Accordingly, the Court will reduce the fees by \$800.00.

Seventh, Defendant objects to several entries as block-billed. After reviewing the challenged billing entries, the Court finds that some reduction in the time billed is warranted. Specifically, the 4.2 hours billed on August 25, 2025, is improperly block-billed. The entry lumps together various distinct tasks, such that the Court has no way to disaggregate the activities to determine whether the time billed for any particular task, or all of the tasks together, was reasonable. The Court therefore reduces the requested time by 1.2 hours.

Accordingly, the Court will reduce the fees by \$1,140.00.

Eighth, Defendant objects to several entries on the grounds that they are duplicative. The Court agrees that the entries on May 15, 2024 to review Defendant's objections to the notice of deposition are duplicative. The Court therefore reduces the requested time by 0.2 hours.

Accordingly, the Court will reduce the fees by \$70.00.

Ninth, Defendant objects to 5.9 hours billed to begin drafting the opening statement. Defendant argues that having two attorneys work on a single task is excessive and unnecessary. The Court agrees that the time is duplicative and unnecessary. The Court therefore reduces the requested time by 2.0 hours.

Accordingly, the Court will reduce the fees by \$1,900.00.

Having analyzed the motion and pleadings filed, and having reviewed the billing statements provided, the Court determines that a reasonable lodestar in this case is \$77,686.50 representing 145.7 hours of attorney time. In sum, the Court reduced the requested lodestar of \$86,366.50 by \$8,680.00 for a total of \$77,686.50 and the Court reduced the requested hours of 158 by 12.5 for a total award of 145.5 hours.

Multiplier

While the lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including “(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award” and (4) the success achieved. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.)

Nonetheless, the court must not consider extraordinary skill and the other *Serrano* factors to the extent these are already included with the lodestar. (*Ketchum v. Moses* (2001) 24 Cal. 4th 1122, 1138-1139.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1139.)

Plaintiff requests a lodestar multiplier enhancement of 1.25 to account for risk and delay in payment. (Mot., pp. 13:11-15:7.)

The Court finds that under the circumstances of this case, a lodestar multiplier is not appropriate. There is no indication that counsel was prevented from taking on other clients by the representation. While counsel accepted the case on a contingency basis and Plaintiff’s attorneys advanced all litigation costs and expenses, the Court finds that such consideration and risk is already included within the lodestar amount. That conclusion is because the substantial hourly rates allowed for by the Court are hourly rates for lemon law cases done on a contingency basis.

Based on the foregoing, the Court declines to award a lodestar multiplier.

RULING:

Plaintiffs’ Motion for Attorney Fees, Costs, and Expenses is GRANTED, IN PART.

The Court finds that reasonable attorney fees are:

Lodestar Adjusted= \$77,686.50 [\$86,366.50 requested]

The total fee award of \$77,686.50 [\$106,958.13 sought] is to be awarded to Plaintiff Mirla Valdes against Defendant Kia America, Inc. and added to the judgment.

Counsel for moving party is ordered to prepare a proposed form of judgment and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.